

M/S Tarunika Gaur Housing & Commercial Ltd. v. State of U.P. and others

Allahabad High Court · Division Bench · 9 February 2012 · WRIT - C No. 6671 of 2012 · **Writ disposed of; petitioner relegated to Clause 6.5 complaint.**

HEADNOTE

A writ seeking mandamus to decide informal billing objections is disposed of where Clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies a specific statutory complaint. The consumer may invoke Clause 6.5 in accordance with law; any complaint so submitted is to be considered and disposed of.

FACTUAL SUMMARY

M/S Tarunika Gaur Housing & Commercial Ltd. sought a mandamus directing respondent no. 4 of the power corporation to decide objections dated 27 April 2011 and 15 June 2011 against electricity bills. After the writ was released from another bench as a Power Corporation matter, Ashok Bhushan and Sunita Agarwal JJ. heard the petitioner and counsel for respondents 2 to 4, who submitted that the consumer's remedy was a complaint under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

Where the grievance is against electricity bills, Clause 6.5 of the U.P. Electricity Supply Code, 2005 is the specific statutory remedy; a writ for mandamus to decide informal objections will be disposed of with liberty to invoke Clause 6.5 in accordance with law, and any complaint so submitted is to be considered and disposed of. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE ELECTRICITY BILLS AND OF THE OBJECTIONS DATED 27.4.2011 AND 15.6.2011

Court did not examine the bills; relegated the consumer to Clause 6.5. ¶ 1